

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00077-CR

JAYTEN PRESLEY TEWES, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 213th District Court
Tarrant County, Texas
Trial Court No. 1885464

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Chief Justice Stevens

MEMORANDUM OPINION

Jayten Presley Tewes entered an open plea of guilty to three counts of possession of child pornography. *See* TEX. PENAL CODE ANN. § 43.26 (Supp.). In exchange, the State agreed to dismiss a fourth pending charge for possession of child pornography. After a punishment trial to the bench, Tewes received two sentences of ten years' imprisonment and one sentence of five years' imprisonment. Although Tewes filed an appeal[1] from his three convictions, we find that we are without jurisdiction over this cause due to Tewes's plea bargain with the State. As a result, we dismiss the appeal for want of jurisdiction.

The Texas Legislature has granted a very limited right of appeal in plea-bargain cases. Rule 25.2(a)(2) of the Texas Rules of Appellate Procedure details that right as follows:

> (2) . . . . In a plea[-]bargain case—that is, a case in which a defendant's plea was guilty or nolo contendere and the punishment did not exceed the punishment recommended by the prosecutor and agreed to by the defendant—a defendant may appeal only:
>
> > (A) those matters that were raised by written motion filed and ruled on before trial,
> >
> > (B) after getting the trial court's permission to appeal, or
> >
> > (C) where the specific appeal is expressly authorized by statute.

TEX. R. APP. P. 25.2(a)(2).

Under the Texas Court of Criminal Appeals' reasoning in *Shankle v. State* and its progeny, a cap on punishment constitutes a punishment recommendation for purposes of Rule

[1]Originally appealed to the Second Court of Appeals, this case was transferred to this Court by the Texas Supreme Court pursuant to its docket equalization efforts. *See* TEX. GOV'T CODE ANN. § 73.001 (Supp.). We are unaware of any conflict between precedent of the Second Court of Appeals and that of this Court on any relevant issue. *See* TEX. R. APP. P. 41.3.

25.2(a)(2). *See Shankle v. State*, 119 S.W.3d 808, 812–13 (Tex. Crim. App. 2003). "Charge-bargaining involves questions of whether a defendant will plead guilty to the offense that has been alleged or to a lesser or related offense, and of whether the prosecutor will dismiss, or refrain from bringing, other charges." *Id.* at 813. "An agreement to dismiss a pending charge, or not to bring an available charge, effectively puts a cap on punishment at the maximum sentence for the charge that is not dismissed." *Id.*

There is no indication in the record before this Court that (1) this specific appeal is expressly authorized by statute, (2) Tewes filed a motion that was ruled on before trial, or (3) Tewes obtained the trial court's permission to appeal. To the contrary, the trial court's amended certification of Tewes's right of appeal indicates that this case involved a plea bargain and Tewes has no right of appeal. Pursuant to Rule 25.2(d) of the Texas Rules of Appellate Procedure, this Court is required to dismiss an appeal if, as in this case, the trial court's certification indicates that there is no right of appeal. *See* TEX. R. APP. P. 25.2(d).

On September 11, 2026, we informed Tewes of the apparent defect in our jurisdiction over his appeal and afforded him an opportunity to respond and, if possible, cure such defect. Our letter states that Tewes's response was due on or before September 21 and warned Tewes that we would have no choice but to dismiss the appeal for want of jurisdiction unless we received a satisfactory response. Tewes did not file any response within the deadline.

Because Tewes has no right of appeal due to his plea bargain with the State and because the trial court's certification correctly indicates that he is without a right of appeal, we dismiss this appeal for want of jurisdiction.

Scott E. Stevens
Chief Justice

Date Submitted: September 16, 2026
Date Decided: October 1, 2026

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